IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-04
CA (CAA) No.-12/230/232/ND/2023

IN THE MATTER OF:
Starla Media Pvt. Ltd. And Adheeshth Holding Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 17.04.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CA (CAA) No.-12/230/232/ND/2023 is **allowed.**

Sd/- **Sd/-**
(DR. BINOD KUMAR SINHA) **(P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

IN THE NATIONAL COMPANY LAW TRIBUNAL
COURT-V, NEW DELHI
CA (CAA) No.12(ND)2023

Under Sections 230 to 232 of the Companies Act, 2013 read with Section 234 of the Companies Act, 2013 and Companies (Compromise, Arrangements and Amalgamation) Rules, 2016.

IN THE MATTER OF SCHEME OF AMALGAMATION

AND

IN THE MATTER OF

STARLA MEDIA PRIVATE LIMITED

CIN: U74300DL2008PTC182166

PAN: AAM CS 2921 B

A Company incorporated under the Companies Act, 1956

Registered Office: Cabin No. 2, 2nd Floor, E-109, Pandav Nagar,

Delhi-110092 **...Applicant No.1/ Transferor Company No. 2**

AND

ADHEESHTH HOLDING PRIVATE LIMITED

CIN: U67120DL2008PTC183961

PAN: AAH CA 3282 G

A Company incorporated under the Companies Act, 2013

Registered Office: 2/16, Ground Floor, Ansari Road, Gali No. 2,

Daryaganj, Behind Vijaya Bank,

New Delhi-110002 **...Applicant No.2/ Transferee Company**

AND

UTKRISHT MANPOWER PARTNERS PRIVATE LIMITED

CIN: U74910UP2012PTC121144

PAN: AAB CU 4770 B

A Company incorporated under the Companies Act, 1956

Registered Office: B-24, Surya Palace, Delhi Road, Meerut-250 002,

Uttar Pradesh **...Non-applicant/Transferor Company No. 2**

CORAM:

SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

Order Delivered on: 17.04.2023

ORDER

PER: SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

1. This is a joint application filed by the applicant companies herein, Starla Media Private Limited **(Applicant No. 1/Transferor Company No. 2)** and Adheeshth Holding Private Limited **(Applicant No. 2/ Transferee Company)** under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavit in support of the above application sworn by Mr. Anil Kumar Maheshwari, being the authorized signatory of the Applicant No. 1/Transferor Company No. 2 and Mr. Tanmay Maheshwari, being the authorized signatory of the Applicant No. 2/Transferee Company, who has been authorized vide Board Resolution dated 13.10.2022 for the Transferor Company No. 2 and the Transferee Company respectively, were duly filed, along with the application. It was also represented that the registered office of the applicant companies is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

3. The Applicant No. 1/Transferor Company No. 2, Starla Media Private Limited (CIN: U74300DL2008PTC182166) was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 19.08.2008 having its Registered Office at Cabin No. 2, 2nd Floor, E-109, Pandav Nagar, Delhi- 110092, India. The Authorized Share Capital of the Transferor Company No. 2 is Rs. 25,00,000 divided into 2,50,000 Equity Shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 2,00,000 divided into 20,000 Equity Shares of Rs. 10/- each.

4. The Applicant No. 2/Transferee Company, Adheeshth Holding Private Limited (CIN: U67120DL2008PTC183961) is a private limited company incorporated under the provisions of Companies Act, 2013, vide Certificate of Incorporation dated 06.10.2008, with Registrar of Companies, NCT of Delhi & Haryana and having its Registered Office at 2/16, Ground Floor, Ansari Road, Gali No. 2, Daryaganj, Behind Vijaya Bank, New Delhi-110002. The Authorized Share Capital of the Transferee Company is Rs. 5,00,00,000 divided into 50,00,000 Equity shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 2,99,25,000 divided into 29,92,500 Equity Shares of Rs.10 each.

5. The Non-Applicant/Transferor Company No. 1, Utkrisht Manpower Partners Private Limited (CIN: U74910UP2012PTC121144) was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 28.07.2012. The registered office of the Company was shifted from the NCT of Delhi to the State of Uttar Pradesh as approved by the Hon'ble Regional Director, Northern Region, Ministry of

Corporate Affairs, New Delhi vide order dated 13.08.2019. Presently, the Registered Office of the Non-Applicant Transferor Company No. 1 is situated at B-24, Surya Palace, Delhi Road, Meerut-250002, Uttar Pradesh. The Authorized Share Capital of the Transferor Company No. 1 is Rs. 25,00,000 divided into 25,000 Equity Shares of Rs. 100/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 10,00,000 divided into 10,000 Equity Shares of Rs. 100/- each.

6. The Transferor Companies as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the Financial Year 31.03.2022.

7. The Applicant companies, vide their meeting of the Board of Directors held on 13.10.2022. have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record.

8. It has been stated that the Applicant No. 1/Transferor Company No. 2 has 02 Equity Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Applicant No. 1 has nil Secured Creditors and 02 Unsecured Creditors and they seek to dispense with the meeting with regards to Secured Creditor in view of the consent affidavit placed by them. In relation to the Equity Shareholders and Unsecured Creditors, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on

record. Since the Company has nil Secured Creditors, therefore, the necessity of convening/holding a meeting does not arise.

9. It has been stated that the Applicant No. 2/Transferee Company has 04 Equity Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Company has nil Secured and nil Unsecured Creditor. In relation to the Shareholders, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on record. Since the Company has nil Secured Creditors and nil Unsecured Creditors, therefore, the necessity of convening/holding a meeting does not arise.

10. It has been stated that the Non-Applicant /Transferor Company No. 1 has 02 Equity Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and both of them have given their respective consents by way of affidavits which were annexed to the application. In relation to the Shareholders, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on record.

11. The appointed date as specified in the Scheme is 01.04.2022 subject to the directions of this Tribunal.

12. The Applicant Companies confirmed that the provisions relating to the accounting treatment for the proposed amalgamation, as contained in the Scheme, were in conformity with the applicable provisions of the Companies

Act, 2013. Certificates from respective Statutory Auditors of the Companies on the accounting treatment, as proposed in the Scheme, were annexed to the application and it is clearly stated that the accounting treatment is in conformity with the applicable prescribed under Section 133 of Companies Act, 2013.

13. The Applicant Companies have stated that no proceedings for inspection, inquiry or investigation were pending against any of the Applicant Companies. Taking into consideration the submissions and the documents filed therewith, the following directions are issued with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows:

i) In relation to the Applicant No.1/Transferor Company No. 2:

a) **With respect to Equity shareholders:** In view of consent affidavits from 02 equity shareholders, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are nil Secured Creditors, therefore, the necessity of convening meeting does not arise. Hence, the convening of meeting of Secured Creditors is dispensed with.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from 02 Unsecured Creditors, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with.

ii) In relation to Applicant No. 2/Transferee Company:

a) **With respect to Equity shareholders:** In view of consent affidavits, from 04 equity shareholders, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There are nil Unsecured Creditor, therefore the necessity of convening a meeting does not arise.

iii) In relation to Non-Applicant/Transferor Company No. 1, it is to be noted that the said Company comes under the jurisdiction of National Company Law Tribunal (NCLT), Allahabad Bench. An application has already been moved in the NCLT, Allahabad and the same is under examination by NCLT, Allahabad. This Hon'ble Tribunal vide its order dated 27.02.2023 directed the counsel to file the copy of the order passed by NCLT, Allahabad along with the 2nd motion application.

iv) Notice of this application shall also be served on the following:

a. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

b. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

c. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The

notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

d. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid terms and hence, disposed of.

Sd/-

DR. BINOD KUMAR SINHA
MEMBER (Technical)

Sd/-

SH. P.S.N. PRASAD
MEMBER (Judicial)